

which satisfaction is to be made to his creditors. But the feoffment, judgment, &c., must be *devised of malice, fraud, or the like*, to bring it within the statute: the Act was meant to prevent deeds, &c., fraudulent in their *concoction*, and not merely such as in their *effect* might delay or hinder other creditors "(h).

5. **Fraudulent conveyance.**—If the settlor was a trader, then by 12 & 13 Vict. c. 106, s. 67 * (being a [*511] re-enactment of the previous statutes), it was declared that "any *fraudulent* conveyance, with intent to defeat or delay creditors, should be deemed an act of bankruptcy;" and it was adjudged fraudulent within the meaning of this clause, if a person assigned the *whole* of his property (a) (whether expressed to be the whole or not in the deed (b)), or all but a *colourable* part (c), or all the stock, without which he could not carry on his trade (d).

6. **Grounds of the rule.**—It was immaterial whether the trust was for any *particular* creditor (e), or a *certain number*

(h) *Meux v. Howell*, 4 East, 13, 14; [and see *Spencer v. Slater*, 4 Q. B. D. 13.]

(a) *Nunn v. Wilsmore*, 8 T. R. 528, per Lord Kenyon; *Alderson v. Temple*, 4 Burr. 2240, per Lord Mansfield; *Hooper v. Smith*, 1 W. Bl. 441, per *eundem*; *Wilson v. Day*, 2 Burr. 827; *Rust v. Cooper*, Cowp. 632, per Lord Mansfield; *Leake v. Young*, 5 Ell. & Bl. 955; *Bowker v. Burdekin*, 12 M. & W. 128; *Johnson v. Fesenmeyer*, 25 Beav. 88; *Smith v. Cannan*, 2 Ell. & Bl. 35. But see the recent case of *Ex parte Gass*, 2 I. R. Eq. 284, in which it was held (though the decision rested on other grounds), that the question of fraud is one of fact, and therefore if under the peculiar circumstances the Court is satisfied that the conveyance of the bankrupt's *whole* property was *bonâ fide*, and with a view to pay his creditors rather than to defeat them the deed will be supported.

(b) See *Dutton v. Morrison*, 17 Ves. 193; *Lindon v. Sharp*, 6 Man. &

Gr. 905. But the assignment of all his property at a certain place is not an act of bankruptcy, unless it be proved that he had no other property; *Chase v. Goble*, 2 Man. & G. 930.

(c) *Law v. Skinner*, 2 W. Bl. 996; *Hooper v. Smith*, 1 W. Bl. 442, per Lord Mansfield; *Wilson v. Day*, 2 Burr. 832, per *eundem*; *Alderson v. Temple*, 4 Burr. 2240, per *eundem*; *Estwick v. Caillaud*, 5 T. R. 424, per Lord Kenyon; *Gayner's case*, cited 1 Burr. 477; *Compton v. Bedford*, 1 W. Bl. 308; *Johnson v. Fesenmeyer*, 25 Beav. 88; *Ex parte Foxley*, 3 L. R. Ch. App. 515.

(d) *Hooper v. Smith*, 1 W. Bl. 442; *Law v. Skinner*, 2 W. Bl. 996; *Siebert v. Spooner*, 1 M. & W. 714; *Porter v. Walker*, 1 Man. & Gr. 686; *Ex parte Bailey*, 3 De G. M. & G. 534; *Ex parte Taylor*, 5 De G. M. & G. 392; *Lacon v. Liffen*, 4 Giff. 75; and see *Ex parte Hawker*, 7 L. R. Ch. App. 214.

(e) *Wilson v. Day*, 2 Burr. 827; *Hassell v. Simpson*, 1 B. C. C. 90; S.